

K&K ENTERPRISES LTD.

(DBA K&K Trailer Sales)

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EQUIPMENT RENTAL AGREEMENT

Key Terms · Saskatchewan

This Agreement is between **K&K Enterprises Ltd.** ("K&K") and the Customer named below. It is made up of this Key Terms page, the Standard Terms that follow, the Equipment Schedule, and any add-on schedule signed with it.

CUSTOMER

Business / company name

Renter — first and last name

Phone

Email

EQUIPMENT AND DATES

Unit #

VIN 1

VIN 2

Rental start date

Pickup location Delisle, Saskatchewan

Security deposit \$

RATE AND TERM

RATE AND TERM — select one

☐ \$ _____ per month, minimum _____ months

☐ \$ _____ per month, minimum _____ months

☐ \$ _____ per month, minimum _____ months

☐ \$ _____ per month, minimum _____ months

Regular monthly rate if no minimum term is selected: \$ _____

KEY TERMS — INITIAL EACH BOX

Read each box and initial it. If anything is unclear, call us before you sign — we are happy to walk through any of it.

1. You are responsible for the trailer

From the moment you pick it up until you bring it back, the trailer is your responsibility. If it is lost, stolen or damaged — however it happens — that is on you. You must have insurance covering it, with K&K Enterprises Ltd. named as loss payee, before we release it.

Customer initials

2. Bring it back clean and empty

The trailer comes back washed, with no product left in the hoppers, and with the hopper cranks. If it comes back dirty or loaded, we charge a **minimum \$250 wash fee** plus the cost of removing and disposing of anything left in it.

Customer initials

3. We can end the rental and take the trailer back

If payment is more than **15 days** past due, or the trailer is damaged or not being looked after, we can end this Agreement immediately. You then have **5 days** to return it.

Customer initials

4. We can charge you

We can charge the card or bank account on file for rent, taxes, wash and cleaning fees, damage, and anything else you owe us under this Agreement — including partial amounts if the full amount is not available.

Customer initials

5. Early return on a discounted rate

If you chose a lower rate for a longer minimum term and return the trailer early, the rate goes back to the regular monthly rate for the whole time you had it. You pay the difference between the discounted rate and the regular rate, for each month you had the trailer.

That difference is the only charge for ending early — you do not owe rent for the rest of the minimum term.

Customer initials

SIGNATURES

I have read the five Key Terms boxes above and had the chance to ask questions about them. I have also received, read, and had the chance to ask questions about the Standard Terms attached to this Agreement. Together with this page they make up the whole Agreement between K&K Enterprises Ltd. and me.

CUSTOMER SIGNATURE

DATE

PRINT NAME AND TITLE

K&K ENTERPRISES LTD. — AUTHORIZED SIGNATURE

DATE

PRINT NAME AND TITLE

STANDARD TERMS

- 1.1 The Equipment.** K&K rents to the Customer the equipment described on this Agreement and in the Equipment Schedule (the "Equipment"). The Equipment remains at all times the property of K&K. The Customer has possession and use of it only, on the terms of this Agreement.
- 1.2 Term.** The rental begins on the rental start date shown on the Key Terms page and continues month to month until the Equipment is returned to K&K in accordance with section 7.
- 1.3 Rate and minimum term.** Rent is the monthly rate selected on the Key Terms page, plus applicable taxes. Where a discounted rate tied to a minimum term has been selected, section 7.4 applies if the Equipment is returned before that term is complete.

2. PAYMENT

- 2.1 When rent is due.** Rent is due on the rental start date and on the same calendar day of each month after that. Rent continues to be payable until the Equipment is returned to K&K's location.
- 2.2 Rent starts on the start date.** Rent begins on the rental start date shown on the Key Terms page **whether or not the Customer has collected the Equipment.**
- 2.3 Changing the start date.** The Customer may move the collection date by giving K&K notice **before** the original rental start date. The collection date may not be moved more than **14 days** past the original start date. Notice given on or after the original start date is not a change of date, and rent runs from the original start date.
- 2.4 Payment method.** The Customer must keep a valid pre-authorized debit or credit card authorization on file with K&K for the whole rental. The Customer authorizes K&K to charge that method for any amount owing under this Agreement, including partial amounts.
- 2.5 Declined bank payments.** A fee of **\$50** applies to each pre-authorized debit that is declined, returned or reversed by the Customer's financial institution. This fee does not apply to declined credit card transactions.
- 2.6 Deposit.** Any security deposit is held by K&K and applied against amounts owing on return of the Equipment. Any balance is refunded once the return inspection is complete and all charges are settled.

3. INSURANCE

- 3.1 Required coverage.** Before the Equipment is released, and for the whole rental, the Customer must maintain third-party liability insurance and physical damage coverage on the Equipment for its full replacement value, with **K&K Enterprises Ltd. named as loss payee.**
- 3.2 Certificate.** The Customer must provide a certificate of insurance evidencing that coverage before collection, and must provide an updated certificate on renewal or on request.
- 3.3 Lapse.** If coverage lapses, is cancelled, or ceases to name K&K as loss payee, the Customer is in default and must return the Equipment immediately.

4. USE AND CARE

- 4.1 Pre-trip inspection.** The Customer is solely responsible for carrying out a daily pre-trip inspection of the Equipment.
- 4.2 Lawful use.** The Equipment must be operated only by properly licensed and qualified drivers, in compliance with all applicable laws, and within its rated capacity.

4.3 Damaging product. The Equipment must not be used to haul gravel, rock, or any corrosive or abrasive material. Grain, fertilizer and sand are permitted.

4.4 No sublease. The Customer must not sublet, lend, assign or part with possession of the Equipment without K&K's prior written consent.

4.5 Location. The Customer must tell K&K where the Equipment is kept and must not remove it from Canada without written consent.

5. MAINTENANCE AND REPAIR

5.1 Repair policy. Breakdowns and repairs are governed by the K&K Rental Repair Policy signed with this Agreement, which forms part of it.

5.2 Wear items. Tires, brake components, lights, air lines, mud flaps, tarps and tarp components, hopper seals and cables, ladders and catwalks, and other consumable or wear items are the Customer's cost, wherever the work is carried out.

5.3 Approval before work. No repair carried out by a third party will be reimbursed unless K&K approved it in writing before the work started.

6. LOSS, THEFT AND DAMAGE

6.1 Customer bears the risk. The Customer bears all risk of loss, theft or damage to the Equipment from collection until return, however caused, and whether or not the Customer is at fault.

6.2 Reporting. The Customer must notify K&K immediately of any loss, theft, accident or damage, and must report any theft to the police and provide K&K with the report.

6.3 Total loss. If the Equipment is destroyed or not recovered, the Customer must pay K&K its agreed value, less any insurance proceeds actually received by K&K.

7. RETURN

7.1 Telling us it is coming back. The Customer must let K&K know before returning the Equipment — a call, text or email to the rental manager is enough. No formal notice period is required.

7.2 Condition on return. The Equipment must be returned to the K&K location it was collected from, washed, empty of product, and with all accessories supplied with it.

7.3 Cleaning. If the Equipment is returned dirty or with product in it, a minimum cleaning charge of \$250 applies, plus the cost of removing and disposing of any product.

7.4 Early return on a discounted rate. Where a discounted rate tied to a minimum term was selected and the Equipment is returned before that term is complete, the rate for the whole rental period reverts to the regular monthly rate. The Customer pays the difference between the discounted rate and the regular monthly rate, multiplied by the number of months the Equipment was rented. **That amount is the Customer's only liability for ending the rental early; no further rent is payable for the unexpired part of the minimum term.**

7.5 Charges continue. Rent continues to accrue until the Equipment is returned to K&K's location.

8. ADVANCE BOOKINGS AND CANCELLATION

8.1 When a booking is confirmed. A unit is not reserved until K&K has received both the signed Agreement **and** the first payment. Until then the unit remains available to other customers.

8.2 Advance bookings. K&K will confirm a booking up to one month before the rental start date. The first month's rent is payable at the time of booking and covers the first month of the rental.

8.3 Cancellation. If the Customer cancels a confirmed booking before the rental start date, K&K retains **25%** of the amount paid where cancellation is more than 14 days before the start date, or **50%** where cancellation is within 14 days of the start date. The balance is refunded.

8.4 Failure to collect. Failure to collect the Equipment without cancelling is not a cancellation. Rent runs from the rental start date under section 2.2.

9. DEFAULT AND REMEDIES

9.1 Events of default. The Customer is in default if payment is more than 15 days past due, if insurance lapses, if the Equipment is damaged or not maintained, if the Customer breaches any term of this Agreement, or if the Customer becomes insolvent or ceases to carry on business.

9.2 K&K's remedies. On default, K&K may terminate this Agreement immediately on notice and require the Equipment to be returned within 5 days. K&K may also recover all amounts owing, all costs of locating, recovering and transporting the Equipment, and all legal and collection costs.

9.3 Collection. Amounts that remain unpaid may be referred to a collection agency. Referral is reported to the credit bureaus and will affect the Customer's credit rating. All collection agency fees and legal costs are added to the amount owing.

9.4 Recovery of the Equipment. If the Equipment is not returned when required, K&K may take all steps available to it at law to recover it, including applying to the Court for an order for possession.

10. LIABILITY

10.1 Customer's use. The Customer is responsible for all loss, damage, fines, penalties and claims arising from the possession or use of the Equipment during the rental, and indemnifies K&K against them.

10.2 Limit on K&K's liability. K&K is not liable for any indirect or consequential loss, including lost profits, downtime, or loss of contracts, arising from any failure or unavailability of the Equipment.

11. GENERAL

11.1 Governing law. This Agreement is governed by the laws of the Province of Saskatchewan and the federal laws of Canada applicable in it.

11.2 Notices. Notices may be given by email, text message, courier or registered mail to the contact details on this Agreement, and are effective when sent.

11.3 Entire agreement. This Agreement is made up of the Key Terms page, these Standard Terms, the Equipment Schedule, the Equipment Condition Report and the K&K Rental Repair Policy, together with any add-on schedule signed with it. Together they are the entire agreement between the parties. No change is binding unless in writing and signed by both parties.

11.4 Severability. If any provision of this Agreement is unenforceable, the remaining provisions continue in full force.

11.5 No waiver. No failure or delay by K&K in exercising any right waives that right or any other right.

SCHEDULE A — EQUIPMENT

Unit #	
Year / make / model	
VIN 1	
VIN 2	
Colour	
Agreed value	\$
Hubometer reading at pickup	
CVIP expiry	
Accessories supplied	Hopper cranks: _____
Telematics device installed	☐ Yes ☐ No

CUSTOMER INFORMATION

Legal name of business (as registered)
Operating / trade name (if different)
Renter — first and last name
Business address (physical — not a PO box)
Phone
Email
Accounts payable email
Driver's licence # of signing individual